

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

Index No.:

-----X  
KARAH WOODWARD,

**SUMMONS**

Plaintiff,  
- against -

Plaintiff designates  
New York County as the  
place of trial.

THE CITY OF NEW YORK, POLICE OFFICER  
DANIEL NOONAN, Shield No 09042, POLICE  
OFFICER JOSEPH ARBIA, Shield No 8721,  
POLICE OFFICER JOHN HANSEN, Shield No  
24182, and POLICE OFFICERS "JOHN DOE 1-  
10", names unknown but believed to  
include a Sergeant involved in the  
arrest of plaintiff;

The basis of venue is:  
location of occurrence  
pursuant to CPLR 504(3)

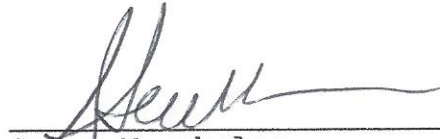
Plaintiffs reside at  
229 Parkville Avenue  
Brooklyn NY 11230

Defendants.  
-----X

**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York  
June 26, 2014

  
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Steve Marchelos  
MARCHELOS LAW P.C.  
Attorney for Plaintiff  
87 Mineola Boulevard  
Mineola, New York 11501  
(516) 248-0202

TO: POLICE OFFICER DANIEL NOONAN  
Shield # 09042  
Midtown South Precinct  
357 West 35<sup>th</sup> Street  
New York, NY 10001

POLICE OFFICER JOSEPH ARBIA  
Shield # 8721  
Patrol Queens South precinct  
107<sup>th</sup> Precinct  
71-01 Parsons Blvd.,  
Flushing, NY, 11365-4113

POLICE OFFICER JOHN HANSEN  
Shield No. 24182  
101<sup>st</sup> Police Precinct  
16-12 Mott Avenue  
Far Rockaway, NY 11691

THE CITY OF NEW YORK  
100 CHURCH STREET  
NEW YORK, NY 10007

JOHN DOE 1-10  
New York City Police Department  
c/o Midtown South Precinct  
357 West 35<sup>th</sup> Street  
New York, NY 10001

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
KARAH WOODWARD,

Plaintiff,  
- against -

THE CITY OF NEW YORK, POLICE OFFICER  
DANIEL NOONAN, Shield No 09042, POLICE  
OFFICER JOSEPH ARBIA, Shield No 8721,  
POLICE OFFICER JOHN HANSEN, Shield No  
24182, and POLICE OFFICERS "JOHN DOE 1-  
10", names unknown but believed to  
include a Sergeant involved in the arrest  
of plaintiff;

VERIFIED COMPLAINT

Index No:

Defendants.

-----X

KARAH WOODWARD, by her attorneys, MARCHELOS LAW P.C.,  
alleges the following, upon information and belief, as her  
Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant  
Police Officer's unlawful and improper arrest and imprisonment of  
plaintiff, assault, abuse, battery and harassment of plaintiff,  
and use of intimidation upon plaintiff on July 2, 2011 through  
July 3, 2011;

2. Plaintiff seeks declaratory relief pursuant to CPLR  
§3001 and 28 U.S.C. § 2201, compensatory and punitive damages for  
violation of plaintiff's civil rights pursuant to 42 U.S.C. §§  
1983 and an award of costs, disbursements and attorneys fees  
under 42 U.S.C. §1988. Plaintiff also seeks compensatory and

punitive damages for violations of plaintiff's civil rights protected under the New York State Constitution as well as compensatory and punitive damages under applicable Federal and State Laws;

#### VENUE

3. That Venue for this action is placed in the County of New York because that is the county where the incident arose; pursuant to CPLR 504(3);

#### PARTIES

4. Plaintiff, KARAH WOODWARD, [hereinafter referred to as "Woodward"] was and continues to be a resident of the State of New York, County of Kings;

5. Defendant, THE CITY OF NEW YORK, [hereinafter "the City of New York"], is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

6. Defendant, the City of New York, has established and maintains a police department which is an agency of the defendant, the City of New York;

7. Defendant, the City of New York, employs various individuals as police officers for the aforesaid police department;

8. At all times relevant, defendant, POLICE OFFICER DANIEL NOONAN, bearing shield number 09042, [hereinafter

"Noonan"] was a duly appointed and acting police officer for the City of New York;

9. At all times relevant, defendant, Noonan was a resident of the State of New York;

10. At all times relevant, defendant, POLICE OFFICER JOSEPH ARBIA, bearing shield number 8721 [hereinafter "Arbia"] was a duly appointed and acting police officer for the City of New York;

11. At all times relevant, defendant, Arbia, was a resident of the State of New York;

12. At all times relevant, defendant, POLICE OFFICER JOHN HANSEN, bearing Shield number 24182 [hereinafter "Hansen"] was a duly appointed and acting police officer for the City of New York;

13. At all times relevant, defendant, Hansen, was a resident of the State of New York;

14. At all times relevant, the defendants named herein as POLICE OFFICERS "JOHN DOE 1-10", [hereinafter the "John Doe Officers"], who's names are currently unknown, but are believed to include a Sergeant from the Midtown South Precinct involved in the arrest of plaintiff, Woodward, were duly appointed and acting police officers for the City of New York;

15. At all times relevant, the John Doe Officers were residents of the State of New York;

16. That all times relevant, the individually named defendants, including Arbia, Hansen, Noonan and the "John Doe Officers," were employed by the City of New York;

17. At all times relevant, the individual defendants, were acting under the color of State Law;

18. At all times relevant, the individual defendants, were acting both in their individual and official capacity as employees of defendant, the City of New York;

19. Notwithstanding the unconstitutional and unlawful conduct, the actions of the defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the City of New York;

20. Notwithstanding the unconstitutional and unlawful conduct, the individual defendants were acting under color of state law;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

21. That on July 2, 2011 at approximately 11:30 a.m. of that day, plaintiff, Woodward, was falsely and unlawfully arrested by the defendants at and about 150 West 45<sup>th</sup> Street, New York, New York;

22. That prior to the arrest, Woodward had arrived at this location with her husband Troy Odendhal, (hereinafter "Odendhal") and lawfully parked their car on West 45<sup>th</sup> Street;

23. That Woodward and Odendhal removed items from their vehicle, including baseball equipment, that they were taking to Central Park along with some relatives from out of town whom they were picking up at a nearby hotel;

24. That as Woodward was placing the muni-meter ticket on the windshield of her car, Odendhal, was, randomly and without warning, punched in the face by a stranger who was walking by;

25. That the stranger's name was later learned to be Luis Salazar (hereinafter "Salazar");

26. That neither Woodward nor Odendhal had ever seen Salazar on any prior or subsequent occasion and did not know him;

27. After being struck, Salazar remained in the area and gave the appearance that he would attack again;

28. That Odendhal placed himself in between Salazar and Woodward in order to protect his wife from a possible attack by Salazar, as he knew Woodward was pregnant;

29. That as Salazar and Odendhal faced each other, the two of them gradually crossed over to the other side of the street in front of the rear entrance of the Millennium Hotel on West 45<sup>th</sup> Street;

30. That as the two men crossed, Odendhal signaled for Woodward to call the police;

31. That during this altercation, a woman on the street shouted to Odendhal to leave Salazar alone and stated that

Salazar was homeless and needed medication;

32. That Salazar did not appear to be homeless or in need of medical attention;

33. This woman attacked Odendhal by attempting to grab him;

34. That Woodward ran to get the items she and Odendhal had removed from the car which included her back pack which contained her cell phone. The other items she collected included a couple of bags containing baseball equipment and a baseball bat;

35. That Woodward called the police by dialing 911;

36. That as Woodward called the police, she crossed the street to be closer to her husband;

37. That as Woodward reached the other side of the street, two police officers, defendants Arbia and Hansen, arrived at the scene by foot. They appeared to have come from the Millennium Hotel;

38. Thinking that these officers were summoned as a result of the 911 call, Woodward and Odendhal approached the defendants, Arbia and Hansen, and told them what had happened;

39. That defendants, Arbia and Hansen, asked Woodward and Odendhal for Identification and searched their bags;

40. That defendants, Arbia and Hansen, had no reasonable cause to search these bag;



41. That defendants, Arbia and Hansen, split up. Hansen went to speak to Salazar and Arbia continued to speak to Woodward and Odendhal;

42. That Arbia frisked Woodward's husband

43. That Arbia had no reasonable cause to search Odendhal as Odendhal was a complainant;

44. That Woodward and Odendhal asked Arbia and Hansen to arrest Salazar as a result of the assault;

45. That Arbia and Hansen refused to do so;

46. That Arbia and Hansen, instead, discouraged Woodward and Odendhal from filing a complaint and suggested that everybody go their separate ways;

47. That Woodward and Odendhal asked to file a complaint;

48. That Arbia and Hansen refused to take the complaint and again, tried to talk Woodward and Odendhal into letting the whole matter drop;

49. That Arbia and Hansen told Woodward and Odendhal that they did not want to be bothered dealing with what they considered a minor incident that occurs in New York all the time;

50. That at this point in time, Odendhal had overheard the police say that Salazar had outstanding warrants;

51. That Odendhal brought this fact to the attention of the police but neither Arbia nor Hansen would arrest Salazar or take the complaint;

52. When Odendhal realized that neither Arbia nor Hansen would perform his job, he requested to speak to a supervisor;

53. When Odendhal realized that neither Arbia nor Hansen would perform his job, he called in a complaint against these two officer;

54. That sometime thereafter, defendant, Noonan, believed to be from the Midtown South Precinct, arrived at the scene;

55. That defendant, Noonan, spoke with defendants Arbia and Hansen;

56. That defendant, Noonan, appeared to be a superior officer to defendants, Arbia and Hansen;

57. Defendant, Noonan, then told Odendhal that if he wanted to proceed with the complaint, then he too would either be arrested or receive a summons for menacing with a bat, purportedly predicated upon the complaint from Salazar, the person who assaulted him;

58. That Odendhal refused to drop the complaint, stating that he never had a bat in his hand and that he was the one who was assaulted;

59. Odendhal then stated that he would drop the complaint against the officers so long as they made an arrest of Salazar or, at least, took his report and complaint relating to the assault;

60. That defendant, Noonan, refused and requested a

Sergeant to come to the scene;

61. That shortly thereafter, a Sergeant from the Midtown South Precinct, who is named herein as one of the "John Doe officers," arrived at the scene in RMP 5091-10;

62. That this Sergeant spoke with the three defendant officers, the assailant and a person from hotel security at the Millennium Broadway Hotel;

63. That, upon information and belief, this individual from the Millennium Broadway hotel security offered to let the Sergeant view the hotel video to confirm Odendhal's story. That the Sergeant refused to look at the video;

64. That the Sergeant and defendant, Noonan, then spoke to Odendhal and told him that if he didn't drop the complaint, they would charge him for menacing with a bat;

65. That Odendhal refused to drop the complaint and asked the officers how they could charge him for menacing with a bat when security personnel from the Millennium Broadway Hotel stated that Odendhal never had a bat in his hand;

66. The defendants, Noonan and the Sergeant, then asked to speak to Woodward alone;

67. Defendants, Noonan and the Sergeant, tried to talk Woodward into convincing Odendhal to drop the complaint;

68. Defendants, Noonan and the Sergeant, told Woodward that they may have to charge her with menacing with a bat because

the female assailant said she had a bat in her hand;

69. That Woodward had not menaced anybody with a bat nor held the bat in a threatening way, but was, in fact, clutching the middle of the bat along with other bags that were removed from their car;

70. That Woodward told the defendants that she would not tell her husband, who was assaulted on the street, to drop the complaint;

71. That at this point in time, Woodward was placed under arrest by defendant, Noonan;

72. That Woodward was handcuffed behind her back

73. That Woodward was then placed in a police vehicle;

74. That while in the police vehicle, defendant, Noonan, asked Woodward, in sum and substance, why she and her husband had called in a complaint against the officers;

75. That Woodward felt threatened by this exchange from Noonan;

76. That this arrest was unlawful and without probable cause to believe any crime had been committed by Woodward;

77. That this arrest was made in retaliation for Woodward and Odendhal's refusal to drop the complaint against the assailant and then for making the complaint against the officers;

78. That this arrest was made notwithstanding the independent witness' statements to the police and the existence

of video tape which the defendants refused to review;

79. That this arrest was made in retaliation for Woodward's attempt to videotape the conduct of the police officers when they initially threatened to charge Odendhall with menacing;

80. That Woodward was then taken to the Midtown South Precinct, believed to be located at 357 West 35<sup>th</sup> Street, New York, NY, 10001 for processing;

81. That Woodward remained in a cell at the Midtown South Precinct until about 10:00 p.m.;

82. That Woodward was thereafter taken to Manhattan Central Booking where she was confined in unsanitary and crowded conditions until July 3, 2011 at approximately 4:00 p.m.;

83. That Woodward was confined for a period of approximately 29 hours;

84. That Woodward had knowledge of this confinement;

85. That Woodward did not consent to the confinement;

86. That Woodward was prevented from leaving the confinement;

87. That during this confinement, Woodward was searched, fingerprinted and photographed by, and at the direction of, the defendants;

88. That during this confinement, Woodward was deprived of freedom and liberty, for a period of 29 hours in cold and

unsanitary conditions all while being pregnant;

89. That during her time confined in Central Booking, Woodward was placed in a germ infested, unsanitary cell with 16 woman, some of whom had open sores and two appeared to be addicts;

90. That although Woodward tried to avoid contact with these woman, it was unavoidable due to the congestion in the cell;

91. That Woodward was also caused to be exposed to a germ infested and filthy toilet which she had no choice to use because of her pregnancy;

92. That on July 3, 2011 at approximately 4:00 p.m. the charges against plaintiff were dismissed, without condition, prior to arraignment;

93. That WOODWARD sustained emotional harm in the form of humiliation, embarrassment, grave fear for her safety and well being, stress, anxiety, intimidation and a loss of self esteem, by virtue of the intentional, deliberate, vindictive, malicious and negligent acts of the officers and was caused to suffer imprisonment, assault, battery, intimidation and abusive behavior perpetrated upon her as a result of the afore-referenced events;

94. That Woodward suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced

events;

FIRST CAUSE OF ACTION FOR VIOLATION OF  
PLAINTIFF'S RIGHT TO BE FREE FROM  
UNREASONABLE SEARCHES AND SEIZURES UNDER THE  
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO  
THE UNITED STATES CONSTITUTION PREDICATED  
UPON FALSE ARREST AND IMPRISONMENT

95. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

96. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause as set forth above, the individual defendants, deprived plaintiff, WOODWARD, of the **rights, privileges and immunities** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

97. As a result of the aforescribed actions, these defendants individually deprived plaintiff, WOODWARD, of the substantive and due process **right to be free from unreasonable search and seizures** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

98. As a result of the aforescribed actions, these defendants individually deprived plaintiff, WOODWARD, of her substantive **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

99. As a result of the aforescribed actions, including the offensive physical and verbal conduct and threatening remarks made by defendants during the aforementioned seizure, arrest and incarceration of plaintiff, these defendants individually deprived plaintiff, WOODWARD, of ***Equal Protection under the Law*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

100. The aforescribed conduct by these defendants was motivated and instigated by defendants for other than lawful reasons and without probable cause;

101. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

102. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

103. As a result of the foregoing, plaintiff has suffered damages;

SECOND CAUSE OF ACTION FOR VIOLATION OF  
PLAINTIFF'S RIGHT TO BE FREE FROM  
UNREASONABLE SEARCHES AND SEIZURES UNDER THE  
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO  
THE UNITED STATES CONSTITUTION PREDICATED  
UPON USE OF EXCESSIVE FORCE

104. Plaintiff repeats, reiterates and realleges each and



every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

105. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants, individually deprived plaintiff, WOODWARD, of the **rights, privileges and immunities** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

106. As a result of the aforescribed actions, these defendants individually deprived plaintiff, WOODWARD, of the substantive and due process **right to be free from unreasonable seizures** secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

107. As a result of the aforescribed actions, these defendants individually deprived plaintiff, WOODWARD, of her **right to liberty** without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

108. As a result of the aforescribed actions, including the offensive physical conduct and threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff, WOODWARD, of **Equal**

***Protection under the Law*** secured by the Constitution and laws of the United States and the Fourteenth Amendment;

109. The aforescribed conduct by these defendants was motivated and instigated by defendants for other than lawful reasons and without probable cause;

110. The amount and type of physical force used upon plaintiff WOODWARD by these defendants was unnecessary, improper, excessive and not reasonably justified under any circumstances;

111. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

112. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well being;

113. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation, embarrassment, disgrace and deprivation of plaintiff's constitutional rights;

114. As a result of the foregoing, plaintiff has suffered damages;

THIRD CAUSE OF ACTION FOR VIOLATION OF  
PLAINTIFF'S RIGHT TO BE FREE FROM  
UNREASONABLE SEARCHES AND SEIZURES UNDER THE  
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO  
THE UNITED STATES CONSTITUTION PREDICATED  
UPON FALSE ARREST AND IMPRISONMENT WHEN  
PLAINTIFF WAS ARRESTED BECAUSE SHE REFUSED TO  
DROP A LAWFUL COMPLAINT AGAINST HER HUSBAND'S  
ASSAILANT AND THE RESPONDING OFFICERS  
(MONELL CLAIM)

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115. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

116. That as a result of the aforescribed actions, defendants, Arbia, Hansen, Noonan and the John Doe officers violated plaintiff's civil rights by failing to respond to her complaint by refusing to file a report in connection with the assault of her husband;

117. That as a result of the aforescribed actions, defendants, Arbia, Hansen, Noonan and the John Doe officers violated plaintiff's civil rights by threatening to arrest her if she insisted on filing a complaint against Salazar;

118. That as a result of the aforescribed actions, defendants, Arbia, Hansen, Noonan and the John Doe officers violated plaintiff's civil rights by threatening to arrest her if she insisted on filing a complaint against the police officers, Arbia, Hansen and Noonan;

119. That as a result of the aforescribed actions,

defendants, Arbia, Hansen, Noonan and the John Doe officers violated plaintiff's civil rights by arresting her when she refused their request to drop the whole incident with Salazar because, in their opinion, it was a minor incident that occurs all the time in New York City;

120. That as a result of the aforescribed actions, defendants, Arbia, Hansen, Noonan and the John Doe officers violated plaintiff's civil rights by arresting her without probable cause to believe she committed a crime;

121. That the arrest of plaintiff, Woodward, was made because she desired to file a complaint against the person who assaulted her husband and then desired to file a complaint against the police officers, Arbia, Hansen and Noonan, who refused to take her report against Salazar or the officers;

122. That the arrest of plaintiff, Woodward, was in retaliation for the plaintiff's refusal to drop her complaints against Salazar and the defendant police officers;

123. That as a result of the routine and persistent manner in which Arbia, Hansen, Noonan and the John Doe Officers repeatedly ignored plaintiff's complaint and tried to convince her to drop the entire matter, it is clear that this activity constituted a policy, custom, or practice of the officers of the City of New York;

124. That as a result of the foregoing, it is clear that

the retaliatory arrest of plaintiff constituted a policy, custom or practice of the officers of the City of New York;

125. That these policies, customs and/or practices were ratified by the supervising officer, identified as one of the John Doe Officers, who arrived at the scene, attempted to convince plaintiff and her husband to drop the charges against Salazar, initially, and the officers, thereafter, and then refused to intervene as Noonan arrested plaintiff after she refused to drop the charges, notwithstanding the fact that there was no probable cause to arrest;

126. That as a result of the aforescribed actions, including the failure of Arbia, Hansen and Noonan to properly respond to a report of a crime from a victim in the City of New York, including those events that they may deem to be less serious, constitutes a long standing de facto custom policy and practice caused by a failure of the City of New York and its policy makers to properly train and supervise its police officers;

127. That the City of New York's failure to properly supervise and train its officers, including defendants Arbia, Hansen and Noonan, constitutes a reckless disregard for the rights of the citizens of the City of New York in general and for the plaintiff, Woodward, in particular;

128. The aforescribed acts of these defendants,

including defendant, the City of New York and its policy making officials and supervisors, were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

129. That as a result of the foregoing, the City of New York is liable;

130. As a result of the foregoing, plaintiff has suffered damages;

FOURTH CAUSE OF ACTION FOR VIOLATION OF  
PLAINTIFFS' SUBSTANTIVE AND DUE PROCESS  
RIGHTS TO BE FREE FROM UNREASONABLE SEARCHES  
AND SEIZURES, AS PROTECTED BY ARTICLE 1 OF  
THE NEW YORK STATE CONSTITUTION PREDICATED  
UPON THE ARREST AND IMPRISONMENT OF PLAINTIFF  
WITHOUT PROBABLE CAUSE

131. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

132. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, the defendants, inclusive of the City of New York, individually deprived plaintiff, WOODWARD, of the **rights, privileges and immunities** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

133. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, WOODWARD, of the substantive and due process **right to be free**

**from unreasonable search and seizures** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

134. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, WOODWARD, of her **right to liberty** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

135. As a result of the aforescribed actions, including the offensive physical and verbal conduct and threatening remarks made by defendants during the aforementioned seizure, arrest and incarceration of plaintiff, these defendants individually and collectively deprived plaintiff, KARAH WOODWARD, of **Equal Protection under the Law** secured by Article 1 Sections 1, 8, 11 and 12 of the New York State Constitution;

136. The aforescribed conduct by these defendants was motivated and instigated by defendants for other than lawful reasons and without probable cause;

137. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

138. As a result of the foregoing, plaintiff has suffered damages;

FIFTH CAUSE OF ACTION FOR VIOLATION OF  
PLAINTIFF'S RIGHT TO BE FREE FROM  
UNREASONABLE SEARCHES AND SEIZURES UNDER  
ARTICLE 1 OF THE NEW YORK STATE CONSTITUTION  
PREDICATED UPON THE USE OF EXCESSIVE FORCE

139. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

140. As a result of the aforescribed actions, including the use of excessive physical force and intentional infliction of emotional harm upon the plaintiff, the defendants individually and collectively deprived plaintiff, WOODWARD, of the **rights, privileges and immunities** secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

141. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, WOODWARD, of the substantive and due process **right to be free from unreasonable search and seizures** secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

142. As a result of the aforescribed actions, these defendants individually and collectively deprived plaintiff, WOODWARD, of her **right to liberty** without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

143. As a result of the aforescribed actions, including



the offensive physical conduct and threatening remarks made by defendants during the aforementioned use of excessive force and intentional infliction of emotional harm upon plaintiff, these defendants individually deprived plaintiff, WOODWARD, of ***Equal Protection under the Law*** secured by Article 1 Sections 1, 8, 11 and 12 of the New York State Constitution;

144. The aforescribed conduct by these defendants was motivated and instigated by defendants for other than lawful reasons and without probable cause;

145. The aforescribed acts of these defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

146. As a result of the foregoing, plaintiff has suffered damages;

#### SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

147. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

148. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the defendants;

149. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants which reflects utter indifference to the safety and well being of others and

specifically the safety and well being of plaintiff;

150. That the aforesaid occurrence and resulting injuries to plaintiff was due to the conduct of defendants which reflects conscious disregard for the safety and well being of others and specifically the safety and well being of plaintiff;

151. That the conduct of defendants acting individually exhibited a reckless disregard for human life and the safety and well being of others and more particularly, for the life, safety and well being of plaintiff;

152. That the conduct of defendants exhibited such a wanton dishonesty as to imply a criminal indifference to the defendants' civil obligations as public servants;

153. As a result of the acts stated above, plaintiff has suffered serious emotional harm in the form of great stress and anxiety, a deprivation of liberty without probable cause, denial of due process, invasion of privacy, mental distress, damage to character and reputation and plaintiff will continue to suffer same in the future;

154. As a result of the foregoing, plaintiff has been damaged;

155. As a result of the foregoing, the individual defendants, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar

way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff, KARAH WOODWARD, respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the false arrest and imprisonment of plaintiff;
2. As to the second cause of action, a declaration that plaintiff's right to be free from unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendment of the United States Constitution was violated predicated upon the use of excessive force;
3. As to the third cause of action, a declaration that plaintiff's right to be free from unreasonable searches and seizures under the Fourth, Fifth and Fourteenth Amendments of the United States Constitution was violated predicated upon the false arrest and imprisonment of plaintiff because she refused to drop a lawful complaint against her husband's assailant and the responding officers (MONELL CLAIM)
4. As to the fourth cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution predicated upon the false arrest and imprisonment of plaintiff was violated;
5. As to the fifth cause of action for violation of plaintiff's substantive and procedural due process right to be free from unreasonable searches and seizures under Article of the New York State

Constitution predicated upon the use of excessive force, was violated;

(B) As to the first through fifth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

(C) As to the first through sixth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

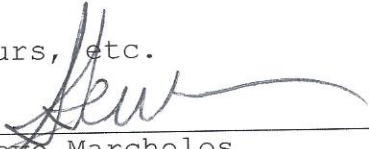
(D) As to the first through sixth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through fifth causes of action, an award of attorney's fees as provided under 42 U.S.C. §1988; and

(F) Such other and further relief as this Court may deem just, proper and equitable.

Dated: Mineola, New York  
June 26, 2014

Yours, etc.

  
\_\_\_\_\_  
Steve Marchelos  
Marchelos Law P.C.  
Attorney for Plaintiff  
KARAH WOODWARD  
87 Mineola Blvd.  
Mineola, NY 11501  
(516) 248-0202

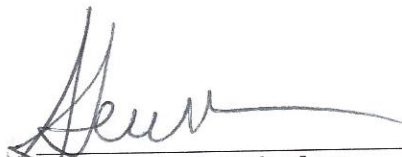
**ATTORNEY VERIFICATION**

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York  
June 26, 2014

  
\_\_\_\_\_  
Steve J Marchelos

Index No:  
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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KARAH WOODWARD,  
Plaintiff,  
- against -

THE CITY OF NEW YORK, POLICE OFFICER DANIEL NOONAN, Shield No 09042, POLICE OFFICER JOSEPH ARBIA, Shield No 8721, POLICE OFFICER JOHN HANSEN, Shield No 24182, and POLICE OFFICERS "JOHN DOE 1-10", names unknown but believed to include a Sergeant involved in the arrest of plaintiff;  
Defendants..

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**SUMMONS AND VERIFIED COMPLAINT**

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**MARCHELOS LAW P.C.**

ATTORNEYS FOR PLAINTIFF(S)

87 MINEOLA BLVD.

MINEOLA, NEW YORK 11501

(516) 248-0202

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Service of a copy of the within

is hereby admitted.

Dated:

.....  
Attorney(s) for

---

**Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A**

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents herein are not frivolous as defined in Subsection C of Section 130-1.1.

Dated: June 26, 2014

  
Steve Marchelos